

24STCV33682 24STCV33682

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MOTION FOR

JUDGMENT ON THE PLEADINGS

The Court tenders the following

tentative decision in the matter Yesenia Zacarias, et al. v. FCA US, LLC, et al., Los Angeles County Superior Court case number 24STCV33682, set for hearing on September 4, 2026. FCA US LLC (Defendant) moves for judgment on the pleadings as to Yesenia Zacarias and Rafael Vicente's (collectively, Plaintiffs) fifth cause of action for fraudulent inducement via concealment contained within their complaint on the basis that they have not pled sufficient facts. Defendant's motion for judgment on the pleadings is denied.

A.

Legal Standard

A motion for judgment on the pleadings may be made after the time to demur has expired and an answer has been filed. (Code Civ. Proc., § 438, subd. (f).) A motion by a defendant may be made on the grounds that the "complaint does not state facts sufficient to constitute a cause of action against that defendant." (Id., § 438, subd. (c)(1)(B)(ii).) A motion for judgment on the pleadings has the same function as a general demurrer but is made after the time for demurrer has expired. Except as provided by statute, the rules governing demurrers apply. (Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 999.)

Like a general demurrer, "ordinarily, a [motion for judgment on the pleadings] does not lie as to a portion of a cause of action, and if any part of a cause of action is properly

pleaded, the [motion] will be overruled.” (Fire Insurance Exchange v. Superior Court (2004) 116 Cal.App.4th 446, 452.) In considering a motion for judgment on the pleadings, courts consider whether properly pled factual allegations — assumed to be true and liberally construed — are sufficient to constitute a cause of action. (Stone Street Capital, LLC v. Cal. State Lottery Commission (2008) 165 Cal.App.4th 109, 116.) Courts may also consider facts subject to judicial notice. (Tung v. Chicago Title Co. (2021) 63 Cal.App.5th 734, 759.)

B.

Discussion

Defendant argues that Plaintiffs have not pled sufficient facts to state a cause of action for fraudulent inducement via concealment. Fraud based on concealment requires the proof of five essential elements: “(1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact.” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40 (Rattagan).) A duty to disclose a material fact exists in the following situations: if “(1) it is imposed by statute; (2) the defendant is acting as plaintiff’s fiduciary or is in some other confidential relationship with plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (i.e., partial concealment); or (5) defendant actively conceals discovery of material fact from plaintiff (i.e., active concealment).” (Ibid.)

Fraud must be pled with

specificity. (Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 843–844.) In other words, a plaintiff must plead facts showing “how, when, where, to whom, and by what means” any alleged misrepresentations are made. (Alfaro v. Community Housing Improvement System & Planning Assn. Inc. (2009) 171 Cal.App.4th 1356, 1384 (Alfaro).) However, in an action for fraudulent concealment where a plaintiff claims misrepresentations based on

nondisclosure, this requirement is relaxed. This is because it is impossible to show “how” and “by what means” a defendant failed to disclose a material fact. (Ibid.) Additionally, less specificity is required when it appears “that the defendant must necessarily possess full information concerning the facts of the controversy.” (Committee on Children’s Television, Inc. v. General Foods Corp. (1983) 35 Cal.3d 197, 217 (General Foods).)

Defendant argues that Plaintiffs’ fraudulent concealment cause of action fails because Plaintiffs have not pled sufficient facts showing a duty to disclose and because Plaintiffs’ allegations of concealment lack sufficient specificity. First, regarding Defendant’s duty to disclose, where no fiduciary or confidential relationship exists between the parties, a plaintiff must show a relationship through some transaction. (Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 310–311.) Here, Plaintiffs allege that they purchased the subject vehicle with Defendant’s express written warranties. (Compl. ¶¶ 7–8.) Parties entering into a contractual agreement are parties to a transaction, “from which a duty to disclose facts material to the transaction arises under certain circumstances.” (Rattagan, supra, 17 Cal.5th at p. 41; see Dhital, supra, 84 Cal.App.5th at p. 844 [holding that a car manufacturer’s express warranty created a transactional relationship requiring the disclosure of known defects].) Plaintiffs further allege that Defendant had exclusive knowledge of the true extent of the relevant defect and actively concealed this information, giving rise to a duty to disclose under the third and fifth categories identified in Rattagan. (Compl. ¶¶ 62–63; see Rattagan, supra, 17 Cal.5th at p. 40.) Thus, Plaintiffs have alleged sufficient facts to demonstrate that Defendant owed a duty to disclose based on the warranty agreement under Rattagan even if Defendant did not directly sell Plaintiffs the subject vehicle.

Additionally, Defendant’s arguments concerning the insufficient particularity of Plaintiffs’ allegations fall flat considering the exception outlined in Alfaro, because Defendant necessarily possesses the facts giving rise to the present controversy. Indeed, contrary to Defendant’s assertions, Plaintiffs have pled facts showing that Defendant had exclusive knowledge of the defect and actively concealed it. (Id. ¶¶ 62–63.) Additionally, Plaintiffs have pled sufficient facts showing actual and justifiable reliance on Defendant’s assertions about the subject vehicle. (Id. ¶¶ 64–66.)

Defendant argues that the warranty

contract between it and Plaintiffs does not give rise to a duty to disclose, citing Bigler-Engler. There, the Court of Appeal held that for a transaction to create such a duty, it needed to “arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (Bigler-Engler, supra, 7 Cal.App.5th at p. 312.) Defendant effectively argues that their warranty agreements do not constitute direct dealings giving rise to a duty to disclose. The Court disagrees. The warranty contracts Defendant enters with purchasers of its vehicles constitute direct dealings with each purchaser. The warranties are not general advertisements directed to the public at large, but direct contracts. Thus, Bigler-Engler is inapplicable.

Plaintiffs’ cause of action for fraudulent inducement via concealment is not barred by the economic loss rule.

Finally, Defendant argues that Plaintiffs’ fifth cause of action runs afoul of the independent tort principle identified in Rattagan. Also referred to as the economic loss rule, tort recovery for breach of a contract duty is generally barred. (Rattagan, supra, 17 Cal.5th at p. 20.) A plaintiff may still bring a tort action if they “demonstrate the defendant’s injury-causing conduct violated a duty that is independent of the duties and rights assumed by the parties when they entered the contract” and that “defendant’s conduct . . . caused injury to persons or property that was not reasonably contemplated by the parties when the contract was formed.” (Id. at pp. 20–21.) However, as noted by the Court in Rattagan, fraudulent inducement “is not a context where the ‘traditional separation of tort and contract law’ obtains.” (Id. at p. 41.) Indeed, Plaintiffs seek tort damages for being fraudulently induced to enter a contract, not from any breach of contract provisions. (Compl. ¶ 60.) Accordingly, Defendant’s motion for judgment on the pleadings is denied as to Plaintiffs’ fifth cause of action.

C.

Conclusion

The Court denies Defendant’s motion for judgment on the pleadings.